

26STCP00511 26STCP00511

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Division: Civil Law and Motion

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Case Number: 26STCP00511 Hearing Date: August 28, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 28, 2026

Case Name: Shah v. Taskhuman, Inc.

Case No.: 26STCP00511 Matter: Motion to Compel Arbitration and Stay Proceedings

Moving

Party: Petitioner Vivek Shah

Responding Party: None

Tentative

Ruling: Petitioner Vivek Shah's petition
is granted.

Petitioner

Vivek Shah ("Petitioner") brings this petition to compel Respondent Taskhuman, Inc. ("Respondent"), a Delaware corporation, and Does 1 through 20 to arbitration.

Petitioner

moves to compel arbitration of his claims pursuant to the arbitration agreement that he accepted when Petitioner logged on to Respondent's website <https://taskhuman.com/blog/>. Respondent did not oppose the petition.

Legal Standard

Under both

the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) Code of Civil Procedure section 1281.2 authorizes the court to order arbitration of a case if it finds the parties agreed to arbitrate that dispute, “and that a party to the agreement refuses to arbitrate that controversy.” (Code Civ. Proc., § 1281.2, subd. (a).) Arbitration agreements should be liberally interpreted and ordered unless the agreement clearly does not apply to the dispute in question. (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353; *Segal v. Silberstein* (2007) 156 Cal.App.4th 627, 633.)

The party

moving to compel arbitration has the initial burden to (1) affirmatively admit and allege the existence of a written arbitration agreement, and (2) prove the existence of that agreement by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.*, 14 Cal. 4th 394, 413.) Once this is met, the burden shifts to the responding party to prove that the agreement is unenforceable by a preponderance of the evidence. (*Ibid.*)

“Doubts as

to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Assn. v. State (2006) 142 Cal.App.4th 198, 205.)

Analysis

Petitioner moves

to compel arbitration of his claims against Respondent and stay the matter pending arbitration.

Federal
Arbitration Agreement

The Arbitration

Agreement (“Agreement”) on Respondent’s website expressly states, “the parties agree and acknowledge that this Arbitration Agreement evidences a transaction involving interstate commerce and that the Federal Arbitration Act, 9 U.S.C. § 1 et seq. (“FAA”), will govern its interpretation and enforcement and proceedings pursuant thereto.” (Petition, Ex. A, p. 15.) Thus, the FAA applies.

Existence
of a Valid Agreement

Petitioner

argues that his claims are subject to arbitration pursuant to the Agreement. The Agreement states that:

Petitioner

argues that his claims are subject to arbitration pursuant to the Agreement. The Agreement states that:

The parties agree that the Arbitrator (“Arbitrator”), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability, or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Agreement is unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel.

(Petition, Ex. A, p. 15.)

““Because

no affirmative action is required by the website user to agree to the terms of a contract other than his or her use of the website, the determination of the validity of the browsewrap contract depends on whether the user has actual or constructive knowledge of a website’s terms and conditions.” (Nguyen v. Barnes & Noble Inc. (9th Cir. 2014) 763 F.3d 1171, 1176.) Petitioner contends that he accepted the Agreement on Respondent’s website when he used

the website.

To

establish the existence of an agreement to arbitrate, it is sufficient for the defendant to provide a copy of the arbitration agreement or state the paragraph verbatim. (Baker v. Italian Maple Holdings, LLC, 13 Cal.App.5th 1152, 1160 (2017); Cal. Rules of Court, Rule 3.1330.) At this stage of the analysis, the court does not need to make “an evidentiary determination of its validity.” (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218–219.) Here, Petitioner has met its burden.

Thus, a valid arbitration agreement exists between the parties. Because Respondent did not file an opposition to challenge the enforcement of the Agreement, the Court grants Petitioner’s petition to compel arbitration.

Stay of
Proceedings

Code of
Civil Procedure section 1281.4 provides that if the court has ordered the arbitration of a controversy, it “shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

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Thus, the Court
stays this action pending the conclusion of the arbitration
proceedings. ¿¿

Conclusion

Petitioner

Vivek Shah’s petition to compel arbitration is granted. The Court stays this action pending the conclusion of the arbitration process.